



Ensuring Access to Justice for Afghan Women and Girls: Documentation, Accountability, Protection, and the Rule of Law

An Interactive Dialogue with Afghan Women, Legal Experts, and Accountability Mechanisms

Side Event on the Margins of the 70th Session of CSW

12 March 2026 | 10:00-11:15AM | Conference Room 2 | United Nations Headquarters

Background

The 70th session of the Commission on the Status of Women (CSW70) focuses on strengthening access to justice for all women and girls. This priority theme presents a critical opportunity to examine how systemic discrimination and institutionalised impunity deny women not only their fundamental rights, but also meaningful access to protection, remedies, and redress. In contexts of protracted crisis, access to justice extends beyond courtrooms; it is defined by a woman's legal status, physical safety, bodily autonomy, and the existence of independent mechanisms capable of addressing violations.

This crisis is most acute in Afghanistan. Since 2021, the Taliban has institutionalised gender-based oppression through over 200 decrees restricting women's participation in public life, employment, education, and freedom of movement. These measures culminated in the 2024 Law on the Promotion of Virtue and the Prevention of Vice, codifying a system widely described by Afghan women as gender apartheid, a term they are advocating to be formally recognised under international law.

Beyond legal and political exclusion, Taliban policies have had profound consequences for women's health and reproductive rights. Restrictions on women's mobility, the exclusion of women from education and professional sectors, and limitations on female healthcare providers have severely constrained access to maternal healthcare, sexual and reproductive health services, and psychosocial support. Women's ability to seek life-saving medical care, access family planning information, or obtain confidential treatment is increasingly mediated by male guardianship and moral enforcement structures. In such conditions, denial of health and reproductive autonomy becomes both a human rights violation and a barrier to justice.

In January 2026, the Taliban introduced a new Penal and Criminal Procedure Code that further formalises this system of control. The Code designates men as the primary legal authority (the "owner of the woman") and divides society into hierarchical classes in which punishment is linked to social status rather than the offence. These provisions normalise practices amounting to slavery, weaken fair-trial guarantees, and legitimise violence against women, fundamentally contravening international human rights standards regarding equality before the law, non-discrimination, and the prohibition of torture and cruel, inhuman, or degrading treatment.

Women's experiences of repression and exclusion in Afghanistan are not uniform. Taliban decrees, legal frameworks, and barriers to justice affect women differently depending on

intersecting identities, including ethnicity, religion or sect, socio-economic status, geography, disability, and displacement. Women belonging to religious and ethnic minorities, as well as those in rural or conflict-affected areas, face distinct and often compounded forms of discrimination and violence, reflecting the intersection of gender-based persecution and identity-based marginalisation.

As violations escalate, preserving credible evidence is vital for future accountability. In response, Afghan women, legal experts, and researchers have launched documentation initiatives to capture primary-source materials, including decrees, court decisions, and survivor testimonies. These efforts aim not only to record abuses but to structure evidence in ways that meet international accountability standards.

This side event situates violence against Afghan women and girls, including restrictions on legal status, bodily autonomy, and access to health and reproductive care, within international legal and accountability frameworks. It highlights the role of UN mechanisms in documenting violations, preserving evidence, and ensuring that Afghan women's voices remain central to the pursuit of justice under conditions of systemic and intersectional discrimination.

Objectives

This side event aims to:

- **Examine the erosion of access to justice in Afghanistan** following the dismantling of judicial institutions and the codification of discriminatory legal frameworks, including the Taliban's Penal and Criminal Procedure Code.
- **Analyse the implications of the Taliban's legal and policy measures**, particularly their impact on women's legal status, equality before the law, protection from violence, and access to health and reproductive rights, in light of international human rights standards.
- **Assess how access to justice is experienced differently across communities**, including the compounded barriers faced by women based on intersecting identities such as ethnicity, religion or sect, socio-economic status, geography, disability, and displacement.
- **Identify the gap between documentation of violations and meaningful accountability outcomes**, including challenges related to survivor protection, admissibility of evidence, and enforcement mechanisms.
- **Highlight the role, opportunities, and limitations of UN and international accountability mechanisms** in preserving evidence, preventing the normalisation of systemic discrimination, and advancing future justice processes.
- **Foster a policy-oriented dialogue between Afghan women, Member States, legal experts, and UN actors** to identify practical, survivor-centred pathways toward accountability and the upholding of international law.

Run of Show

Opening Session (10:00 – 10:25)

- **Welcoming remarks** by H.E. Naseer Faiq, Charge d'Affaires of Afghanistan Mission (3 mins)
- **Greece** – Ms. Aikaterini Patsogianni, Secretary General for Equality and Human Rights (3 mins)
- **Ireland** - Ambassador for Gender Equality (3 mins)

Keynote Address (10:25 – 10:30)

Mr. Richard Bennett, UN Special Rapporteur on the Situation of Human Rights in Afghanistan

Panel Discussion (10:30 – 11:00) – Moderator: Meetra Alokozay (3 mins)

Panelists

1. **Ms. Metra Mehran**, Co-Founder and Director, Afghanistan Justice Archive – 6 mins
2. **Ms. Zarqa Yaftali**, Director and Founder, Women and Children Legal Research Foundation (WCRAN) – 6 mins
3. **Ms. Hanifa Girowal**, Women's Rights First (WRF) & Afghanistan Policy Lab SPIA – 6 mins
4. **Dr. Homira M. Rezai**, Human Rights Defender & Board Member, Shahmama Organization – 6 mins
5. **Mr. Mahboob Shah Dorabi**, Afghan civil society advocate, writer and sports leader – 6 mins

Q&A / Floor Interventions (11:00 – 11:15)

- **Member State Interventions**
 - **Finland** - The State Secretary of Finland
 - **Australia** – Ambassador
 - **Spain** - Ambassador Feminist Foreign Policy
 - Additional Member State interventions from the floor

Closing Remarks (if time permits)

Representative of the **Permanent Mission of Afghanistan to the United Nations**

Cosponsors or co-organizers:

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And

The [Afghanistan Justice Archive \(AJA\)](#) documents and analyses the evolving legal and enforcement architecture of Taliban rule. By cataloguing decrees, judicial practices, and lived impacts, it transforms fragmented information into structured evidence that supports international legal analysis, policy engagement, and accountability pathways. Grounded in survivor-led insight and Afghan expertise, AJA centres those most affected not only as witnesses, but as analysts shaping the record and its implications.

Women's Rights First (WRF) is an Afghan Women Led Feminist organization focused on documenting both primary source verification and legal documentation which is not just information gathering but is a process of documenting facts in a manner admissible before a court or accountability mechanism.

Women and Children Research and Advocacy Network (WCRAN) recently conducted research on women's access to justice in Afghanistan. The study analyzes the growing barriers that prevent women from seeking justice, including fear of retaliation, public humiliation, and the risk of forced return to abusive environments. Selected key findings from this research will be presented during the event.

The [Shahmama Organization](#) The Shahmama is a Geneva-based human rights organization documenting gender-based violence and persecution affecting Afghan women and girls, including abuses occurring within family structures.

Its work combines survivor-centred documentation with policy advocacy, particularly around the United Nations Human Rights Council in Geneva. The organization contributes evidence and analysis to international accountability mechanisms and policy discussions, highlighting how systemic and intersectional discrimination shapes access to justice.



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Speakers, Panellists and Moderator Biography

Keynote speaker

Richard Bennett: *United Nations Special Rapporteur on the Situation of Human Rights in Afghanistan*

Richard Bennett is the United Nations Special Rapporteur on the situation of human rights in Afghanistan, a mandate he has held since 2022. In this role, he monitors and reports on human rights developments in Afghanistan, engages with victims, civil society, and international stakeholders, and provides recommendations to the United Nations Human Rights Council and the international community on protecting and promoting human rights in the country.

Mr. Bennett has more than three decades of experience in international human rights, humanitarian affairs, and conflict situations. Prior to his appointment as Special Rapporteur, he held several senior positions within the United Nations, including serving as the Chief of the Asia-Pacific Section of the Office of the High Commissioner for Human Rights (OHCHR). He has also worked with UN human rights and humanitarian missions in Afghanistan, Timor-Leste, and South Sudan.

Throughout his career, Mr. Bennett has focused on the protection of civilians, accountability for human rights violations, and the advancement of international human rights and humanitarian law. His work has included supporting transitional justice processes, strengthening national human rights institutions, and promoting the rights of women, minorities, and vulnerable communities in conflict-affected contexts.

Panellists

Dr. Homira Rezai is a Hazara human rights defender, biomedical scientist, and policy advocate working at the intersection of gender justice, minority rights, and global health. She is a co-founding member of MirZyme Therapeutics, a biotechnology company developing diagnostic and therapeutic solutions for pregnancy complications, including preeclampsia.

Dr. Rezai is also a board member of Shahmama Organization, where she contributes to survivor-centred documentation and international advocacy addressing gender-based persecution and systemic discrimination affecting women and girls in Afghanistan. Her work engages with international policy processes, including UN mechanisms and parliamentary forums, focusing on accountability, minority protection, and access to justice.

As a Hazara woman from Afghanistan, her advocacy highlights the intersectional dimensions of discrimination, particularly the compounded barriers faced by women belonging to ethnic and religious minorities, including restrictions on health, bodily autonomy, and access to justice.

Ms. Zarqa Yaftali – Short Biography

Zarqa Yaftali is an internationally recognized peacebuilder, women's rights advocate, and legal expert committed to advancing education, justice, and women's empowerment in Afghanistan and globally. Since 2009, she has served as Executive Director of the Women and Children Legal Research Foundation (WCLRF), leading legal reform, research, and advocacy to strengthen women's rights, access to education, justice, and the Women, Peace and Security agenda. In 2023, she founded the Women and Children Research and Advocacy Network (WCRAN) in Canada to expand global advocacy and innovative education initiatives for Afghanistan women and girls.

She has twice briefed the United Nations Security Council about the situation of Afghanistan women and serves as Co-Chair of the Women, Peace and Security Working Group, Board Member of Women Living Under Muslim Laws, and member of the ICAN, and the Malala Fund's Education Champion Network.

Ms. Yaftali is also the Founder of Kabul Online School, a high-capacity virtual academy providing structured digital education for girls in Grades 7–12 in Afghanistan. Built as a professional online campus with rigorous standards, live instruction, verified academic records, and credible transcripts

She received the 2019 N-Peace Award and the 2026 Zayed Award for Human Fraternity.

Hanifa Girowal

Hanifa Girowal is a public international law expert specializing in gender justice and international accountability, with professional experience advancing human rights, rule of law, and governance in complex and conflict-affected environments. She currently serves as Vice President of Women's Rights First, an Afghan women-led feminist organization working to advance accountability, peacebuilding, and digital empowerment initiatives through locally grounded and internationally informed approaches.

Girowal is a Non-Resident Fellow at the Afghanistan Policy Lab at Princeton University's School of Public and International Affairs and has contributed to international human rights mechanisms, including supporting the mandate of the United Nations Special Rapporteur on the situation of human rights in Afghanistan.

Prior to 2021, she held senior public sector positions in Afghanistan, including Deputy Governor of Kabul and Director of Human Rights at the National Directorate of Security, where she worked on civilian protection, rule of law, and human rights oversight.

Her research and advocacy focus on strengthening international accountability mechanisms, advancing gender-responsive justice, and bridging local documentation efforts with global legal and policy processes.

Girowal holds a master's degree in public international law from Brunel University London.

Metra Mehran is a human rights activist from Afghanistan. Following the Taliban's takeover, she now lives in exile and advocates globally for the recognition and codification of the Taliban's gender apartheid under international law.

She is a co-founder of the Afghanistan Accountability Collective, an initiative that creates cross-sector platforms bringing together advocates, researchers, legal experts, and policymakers to advance coordinated global action and promote accountability for the

Taliban's systematic violations of women's rights. She is also founded the Afghanistan Justice Archive, a digital repository that documents the Taliban's institutionalized oppression and gender-based persecution. The archive preserves critical evidence and amplifies the lived testimonies of women and girls in Afghanistan, contributing to international awareness and future pathways for justice. Through her advocacy, Metra works to ensure that the experiences of women and girls in Afghanistan are recognized globally and that mechanisms are developed to hold perpetrators accountable under international law.

Mr. Mahboob Shah Darabi is an Afghan civil society advocate and former sports leader who will participate in this event as an eyewitness speaker. He previously served as President of the Afghanistan National Snooker and Billiards Federation, where he played a key role in promoting Afghan athletes internationally and supporting the development of professional sport in the country.

Mr. Darabi holds degrees in Law and Political Science and in Business Administration and has been involved in youth and peace initiatives in Afghanistan, including participation in the Youth Commission of the High Council for National Reconciliation.

Drawing from his personal experiences under Taliban rule, he will share first-hand testimony on the challenges individuals face in seeking justice, protection, and basic rights in Afghanistan today.

Moderator:

Meetra Alokozay is the Executive Director of Sahar Education, a nonprofit advancing education, leadership, and economic opportunities for Afghan women and girls. She leads initiatives that create alternative and community-based learning pathways for women and girls who have been denied access to formal education.

With a deep commitment to gender justice, Meetra works at the intersection of education, human rights, and conflict response. She collaborates with grassroots partners and international organizations to support innovative programs that empower women and girls to continue learning despite systemic barriers.

Meetra advocates globally for the protection of girls' education and contributes to policy and media discussions on gender equality and education in crisis contexts. She also serves as a board member of Simplify Global Education, which provides accessible education and English-language learning opportunities for immigrant and refugee communities in the United States.